Application No. 12468/86
by Annie and Robert RHODES
against Denmark

The European Commission of Human Rights sitting in private on 3 March 1988, the following members being present:

MM. J.A. FROWEIN, Acting President
C.A. NØRGAARD
S. TRECHSEL
E. BUSUTTIL
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H.G. SCHERMERS
H. DANELIUS
G. BATLINER
J. CAMPINOS
H. VANDENBERGHE
Mrs. G.H. THUNE
Sir Basil HALL
MM. F. MARTINEZ
C.L. ROZAKIS
Mrs. J. LIDDY

Mr. H.C. KRÜGER Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 2 October 1986 by Annie and Robert Rhodes against Denmark and registered on 7 October 1986 under file N° 12468/86;

Having regard to the report provided for in Rule 40 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The facts of the case, as submitted by the applicants, may be summarised as follows.

The first applicant is an Australian citizen, born in 1938. The second applicant is a citizen of the United States of America, born in 1941. At the time of the introduction of the application they were living in Copenhagen, Denmark. They are both members of the Church of Scientology. Before the Commission they are represented by Mr. Mourad Oussedik and Mrs. Brigitte Bouvier, lawyers practising in Paris, France.

The applicants came to Denmark in 1975 and they were initially given one year residence permits which were renewed by the Ministry of Justice each year. The applicants have one child born in 1981.

The applicants' application for a further renewal of their residence permits was rejected by the Aliens Supervisory Board (Tilsynet med Udlaendinge) on 12 May 1982. Both applicants appealed against the decision to the Ministry of Justice. On 28 June 1985, however, the Ministry of Justice rejected the applicants' appeal and they were requested to leave Denmark no later than 1 September 1985.

The applicants did not comply with this request. Instead, on 12 September 1985, the applicants lodged a complaint with the parliamentary Ombudsman. For this reason the Ministry of Justice by letter of 11 November 1985 postponed the deadline for leaving the country until further notice.

Having examined the case, which also concerned other members of the Church of Scientology, the Ombudsman in his report of 6 March 1986 found no reason to criticise the decision taken. Regarding the applicants in the case which is now before the Commission, the Ombudsman suggested that they be given at least one month to prepare their departure. Accordingly, the Ministry of Justice decided on 11 March 1986 that the applicants should leave the country on 10 April 1986 at the latest.

Due to the applicants' personal circumstances the Ministry of Justice on 10 April 1986 extended the time-limit for leaving the country until 1 August 1986.

On 2 June 1986 the applicants submitted to the Directorate for Aliens (Direktoratet for Udlaendinge) a request to have the Ministry of Justice's administrative decision concerning their residence permits brought before the courts in accordance with Section 52 of the Aliens Act (Udlaendingeloven) which provides for a special procedure whereby an alien has the right to have certain specific decisions concerning residence permits and expulsion set out in this section brought before the court by the Directorate for Aliens at the request of the alien concerned.

In July 1986, however, the Directorate for Aliens informed the applicants that their case could not be brought before the courts according to the Aliens Act.

The applicants did not institute proceedings in the High Court (Østre Landsret) against the Ministry of Justice in accordance with their constitutional rights set out in Section 63 of the Danish Constitution (Danmarks Riges Grundlov).

COMPLAINTS

The applicants invoke Articles 6 para. 1, 8 and 11 in conjunction with Articles 9 and 14 of the Convention as well as Article 4 of Protocol No. 4 to the Convention.

Under Article 6 para. 1 of the Convention the applicants complain that, although they could bring a case before the High Court, this remedy could not be taken into consideration for the purpose of Article 6 para. 1 since this action had no suspensive effect. Regarding the applicants' complaints, they did not therefore have at their disposal an impartial tribunal which could, in a fair hearing, determine the civil rights which allegedly were at stake.

The applicants also complain under Article 8 of the Convention that the decisions rejecting their application for residence permits violate their right to respect for their family life. They came to Denmark in 1975 and the Government's decisions are without motivation. They have not been found guilty of any criminal offence or otherwise acted in a way which could allow the application of Article 8 para. 2. The violation under Article 8 is particularly grave since they have a child born in Denmark and with no ties with any other country.

In conjunction with Articles 9 and 14 of the Convention the applicants furthermore invoke Article 11 alleging that the Church of Scientology in Denmark is one of only four mother churches of the

Church of Scientology and the existence of this religious association constitutes the very reason for their settling in Denmark. The departure of the applicants from Denmark would rupture the long-standing links with their numerous friends united in this association.

Finally, under Article 4 of Protocol No. 4 the applicants allege that the motives behind the refusal to renew the residence permits were merely to get rid of persons belonging to the Church of Scientology. The measure taken should therefore be considered as collective expulsion of the applicants since a large number of their friends also belonging to the Church of Scientology have likewise been requested to leave Denmark.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 2 October 1986 and registered on 7 October 1986.

On 13 July 1987 the Commission declared inadmissible an application concerning 17 other members of the Church of Scientology who had been requested to leave Denmark under circumstances similar to those of the present applicants (No. 12097/86, Dec. 13.7.87, unpublished).

On 29 September 1987 the applicants were requested to inform the Commission whether they, in the light of the above decision, intended to pursue their application further. The Commission, however, did not receive any reply to this request. Furthermore, the Commission observes that despite reminders sent to the applicants on 29 October 1987, 18 November 1987 and 21 December 1987 (twice by registered mail) the applicants have not resumed contact with the Commission and thus failed to provide the information requested by the Commission.

REASONS FOR THE DECISION

In the circumstances described above the Commission considers that the applicants must be regarded as having lost interest in their application. Furthermore the Commission finds that there are no reasons of a general character affecting the observance of the Convention which necessitate a further examination of the case.

For these reasons, the Commission

DECIDES TO STRIKE THE APPLICATION OFF ITS LIST OF CASES

Secretary to the Commission — Acting President to the Commission

(H. C. KRUGER) — (J. A. FROWEIN)